

SENATE No. 429

The Commonwealth of Massachusetts

PRESENTED BY:

Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish a commission to investigate AI in education.

PETITION OF:

NAME:

Jacob R. Oliveira

DISTRICT/ADDRESS:

Hampden, Hampshire and Worcester

SENATE No. 429

By Mr. Oliveira, a petition (accompanied by bill, Senate, No. 429) of Jacob R. Oliveira for legislation to establish a commission to investigate AI in education. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish a commission to investigate AI in education.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General Laws are hereby amended by inserting the following chapter:-

2 CHAPTER 69A

3 Artificial Intelligence in Education

4 a) Definitions

5 (i) “School systems,” shall refer to the independent school systems of the commonwealth,
6 both private and public, and the governing body of the school system, including but not limited
7 to the local school committee, superintendent, and local town government.

8 (ii) “generative AI,” shall refer to AI chatbots including but not limited to ChatGPT, or
9 any other form of algorithmic and pattern recognizing AI technology in which students may use
10 to perform classroom work including but not limited to essays, problem solving, etc.

(iii) “automated decision systems,” shall refer to any AI system a school or school system may implement or use to perform tasks including but not limited to scheduling, lesson planning, speech writing, school bus route planning, grading, and budgeting.

(b) There shall be a commission within the executive office of education for the purpose of studying and making recommendations relative to the use of AI in education, including but not limited to providing guidelines for the ethical use of AI in teaching and learning for educators, recommendations for legislators on how to protect data of schools that use AI, and guidance on how to ensure student use of AI is effective, safe, and equitable. The commission shall evaluate the implementation and use of automated decision systems and generative AI in the education of the commonwealth and make recommendations to the legislature regarding appropriate regulations, limits, standards and safeguards. The commission shall:

(i) undertake a complete and specific survey of all uses of automated decision systems and generative AI in the school systems of the commonwealth and the purposes for which such systems are used, including but not limited to:

(a) the principles, policies, and guidelines adopted by Massachusetts school systems to inform the procurement, evaluation, and use of automated decision systems, and the procedures by which such principles, policies, and guidelines are adopted;

(b) the training Massachusetts school systems provide to teachers and students using automated decision systems and generative AI, and the procedures for enforcing the principles, policies, and guidelines regarding their use;

(c) the manner by which Massachusetts school systems validate and test the automated decision systems they use, and the manner by which they evaluate those systems on an ongoing

basis, specifying the training data, input data, systems analysis, studies, vendor or community engagement, third-parties, or other methods used in such validation, testing, and evaluation;

(d) matters related to the transparency, explicability, auditability, and accountability of automated decision systems in use in Massachusetts school systems, including information about their structure; the processes guiding their procurement, implementation and review; whether they can be audited externally and independently; and the people who operate such systems and the training they receive;

(e) the manner and extent to which Massachusetts school systems make the automated decision systems they use available to external review, and any existing policies, laws, procedures, or guidelines that may limit external access to data or technical information that is necessary for audits, evaluation, or validation of such systems;

(f) procedures and policies in place to protect the due process rights of individuals directly affected by Massachusetts schools and their offices' use of automated decision systems, including but not limited to public disclosure and transparency procedures; and

(g) the manner and extent school systems are educating their students regarding effective use of AI in their work, as well as the school policy for inappropriate student use of generative AI, including but not limited plagiarism.

(ii) consult with experts in the fields of machine learning, algorithmic bias, algorithmic auditing, and civil and human rights;

(iii) examine research related to the use of automated decision systems that directly or indirectly result in disparate outcomes for individuals or communities based on an identified group characteristic;

(iv) conduct a survey of technical, legal, or policy controls to improve the just and equitable use of automated decision systems and generative AI and mitigate any disparate impacts deriving from their use, including best practices, policy tools, laws, and regulations developed through research and academia or proposed or implemented in other states and jurisdictions, including but not limited to the US department of education report on AI and the white house AI bill of rights, as well as the European ethical guidelines on the use of AI and data in teaching and learning for educators;

(v) examine matters related to data sources, data sharing agreements, data security provisions, compliance with data protection laws and regulations, and all other issues related to how data is protected, used, and shared by agencies using automated decision systems, in Massachusetts and in other jurisdictions;

(vi) examine matters related to automated decision systems and intellectual property, specifically with regards to plagiarism and student work, and the impacts of intellectual property considerations on transparency, explicability, auditability, accountability, and due process;

(vii) examine any other opportunities and risks associated with the use of automated decision systems by Massachusetts school systems, including but not limited to the effective and ethical use of AI in the classroom;

(viii) examine the potential implementation of a mandatory watermark in generative AI and automated decision systems used by school systems;

(ix) examine potential implementation and results of policy, recommendations, guidance, and budgeting that ensures equitable use of AI across school systems of the commonwealth.

(c) The commission shall consist of the Secretary of education or designee, who shall serve as chair; the Senate President or designee; the Speaker of the House of Representatives or designee; the house and senate chairs of the joint committee on education; the house and senate chairs of the joint committee on higher education; the house and senate chairs of the joint committee on advanced information technology, the internet, and cybersecurity; the attorney general or a designee; the Commissioner of the Department of Children and Families, or their designee; president of the Massachusetts Teachers Association, or their designee; president of the American Federation of Teachers Massachusetts or designee; 5 representatives from academic institutions in the Commonwealth who shall be experts in (i) artificial intelligence and machine learning, (ii) data science and information policy, (iii) social implications of artificial intelligence and technology and (iv) education policy ; 1 high school student representative from each county of the commonwealth; 3 representatives from the Massachusetts Technology Collaborative; 1 representative of the Massachusetts association of school committees; 1 representative of the Massachusetts association of school superintendents; 1 representative from the Department of Elementary and Secondary Education Digital Learning Advisory Council.